

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0000974

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: GERALDINE RANDALL

vs.

DEFENDANT: VILLA MARIN
HOMEOWNERS ASSOCIATION

NATURE OF PROCEEDINGS: 1) MOTION – DISMISS
2) MOTION - ENFORCE

RULING

There are two motions on calendar. On May 22, 2026, Defendant Kirk Beales filed a Motion to Enforce a Settlement Agreement pursuant to Code of Civil Procedure §664.6. On April 8, 2026, Plaintiff/Cross-Defendant Geraldine Randall filed a Motion to Dismiss Action.

Both the motions seek multiple forms of relief. These motions are granted in part and denied in part, as more specifically set forth in the “Ruling” section below.

A. Procedural Background

Plaintiff/Cross-Defendant Geraldine Randall (“Randall”) filed her initial Complaint against Defendant/Cross-Complainant Villa Marin Homeowners Association (“HOA”) on September 25, 2023, alleging that she is a homeowner at Villa Marin Properties senior living property, which is managed by the HOA. Randall alleged, among other things, that the HOA failed to purchase insurance as required, retaliated against Randall for raising the insurance issue by rejecting her reasonable maintenance requests and harassing her, mismanaged the skilled nursing facility, breached an initial settlement agreement between the parties, and improperly adopted election rule changes. Randall asserted causes of action against the HOA for violations of the Davis-Stirling Common Interest Development Act, breach of contract, and for declaratory judgment. Randall filed a First Amended Complaint on April 19, 2024, adding HOA Vice President Kirk Beales (“Beales”) as a defendant, additional factual allegations, an additional breach of contract cause of action, and a cause of action for breach of fiduciary duty.

On July 2, 2024, the HOA filed a Cross-Complaint against Randall for breach an initial settlement agreement and breach of covenants in the HOA’s CC&Rs reached between the parties.

After attending a settlement conference before Hon. Andrew Sweet on February 6, 2026, the parties executed a written Settlement Agreement (the “Agreement”), a copy of which is attached as Exhibit 1 to the Declaration of Geraldine Randall and Exhibit 3 to the Declaration of Edward Romero.

On March 25, 2026, Randall filed a Notice of Settlement of Entire Case, conditional on the satisfactory performance of terms in the Agreement.

B. Motions Regarding the Case Resolution

Both Randall and the HOA/Beales have filed motions relating to the Agreement. For purposes of clarity, the HOA and Beales will collectively be referred to as “Defendants”.

Randall seeks an order:

1. to enforce the settlement pursuant to Code of Civil Procedure § 664.6(a), asking the court to retain jurisdiction to enforce their Settlement Agreement, as expressly set forth in Paragraph 10.A of the Settlement Agreement executed on February 6, 2026 (Exhibit 1).
2. to dismiss this a matter without prejudice and retaining jurisdiction under Code of Civil Procedure § 664.6(a) over Plaintiff GERALDINE RANDALL and Defendants VILLA MARIN HOMEOWNERS ASSOCIATION and KIRK BEALES to enforce the Settlement Agreement until performance in full of its terms.
3. that Defendants’ continuing obligations as HOA remain operative during Plaintiff’s residency at Villa Marin, including all obligations set forth in paragraphs 5 through 10 of the Settlement Agreement.
4. that a request for dismissal with prejudice may be made only after full performance of the terms of the Settlement Agreement.
5. granting such other and further relief as the Court deems just and proper.

(Randall’s Notice of Motion and Motion filed April 8, 2026 and Amended Motion and Motion filed June 2, 2026 (collectively, “Randall Motion”).)

Defendants’ motion seeks an Order:

1. Dismissing Kirk Beales as a defendant in the First Amended Complaint of Geraldine Randall with prejudice.
2. Requiring plaintiff Geraldine Randall to return to counsel for defendants Kirk Beales and Villa Marin the uncashed settlement check received by her on or about February 16, 2026.
3. Dismissing the First Amended Complaint against Villa Marin without prejudice pursuant to section 664.6(a) of the Code of Civil Procedure until further order of this Court.

4. Dismissing the Cross-Complaint of the Villa Marin Homeowners' Association without prejudice pursuant to section 664.6(a) of the Code of Civil Procedure until further order of this Court.
5. A judicial declaration that Kirk Beales, Villa Marin and plaintiff and cross defendant Geraldine Randall ("Randall") have entered into a valid and enforceable settlement that requires Randall to dismiss, with prejudice, Beales and Villa Marin from the First Amended Complaint of Randall.

(Defendants' Notice of Motion and Motion filed May 22, 2026 ("Defendants Motion").)

C. Defendants' Objections

Defendants object to certain language in Randall's declaration and her memorandum in support of her motion. The Court need not rule on these objections as the language subject to these objections does not impact the Court's analysis or ruling. Defendants' other objections, regarding the length of Randall's voluminous declaration and her memorandum, are overruled. The Court considers all of the papers filed by the parties in ruling on these motions. Randall's amended notice provided the hearing date once it was received, as is common practice, and added language about the Court's tentative ruling procedure. No substantive changes were made with respect to the relief sought by Randall. Defendants do not contend they were prejudiced by this amended notice or were unaware of the hearing date.

Defendants also object to Randall's declaration filed in connection with her opposition to Defendants' motion. The Court does not rule on these objections for the reasons noted above.

D. Randall's Objections

Randall objects to new evidence and argument presented by Defendants in connection with their Reply. The Court sustains this objection and does not consider this new evidence. (See *Varjabedian v. City of Madera* (1977) 20 Cal.3d 285 n. 11; *Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1212.) The new evidence is not evidence that responds to Randall's Opposition or fills in gaps, but rather is evidence that could have been presented earlier in connection with Defendants' moving papers but was not. Defendants provide no explanation as to why they did not offer this evidence in connection with their motion. The Court notes that this evidence would not impact its ruling in any event.

Any earlier settlement conference or discussions involving the parties is not relevant. The Court is focused here on the settlement conference before Judge Sweet on February 6, 2026, and the resulting Agreement that was executed by the parties on the same day.

E. Requests for Judicial Notice

Defendants' request for judicial notice of the First Amended Complaint (Exhibit 1), the Cross-Complaint (Exhibit 2), and legislative history materials (Exhibits 3-9), is granted. Randall's request for judicial notice of the Register of Actions (Exhibit A) and her Mandatory Settlement Conference Statement filed on December 23, 2025 (Exhibit B) is also granted. (Evid. Code §§ 452, 453.) While the Court takes judicial notice of these documents, it does not take judicial notice of the truth of any

matters stated therein. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

F. The Agreement

The Agreement includes the following language:

2. CONSIDERATION TO RANDALL

A. Payment to Randall. As consideration for the terms and conditions of the Settlement, the insurer for Villa Marin will pay to Randall the sum of \$150,000.00 upon the later of (i) fifteen business days after the Effective Date of this Agreement or (ii) the date counsel for Villa Marin and Beales receive a W-9, completed and signed by Randall.

B. DISMISSAL OF CROSS-COMPLAINT

Within ten days after Randall files with the Court her dismissal, with prejudice, of the First Amended Complaint against Villa Marin and Beales with Notice of Errata (the “Dismissal”), Villa Marin will file its dismissal, *with prejudice*, of the Cross-complaint against Randall (the “Cross complaint Dismissal”) . . .

3. CONSIDERATION TO VILLA MARIN AND BEALES

Dismissal of the Action. The Parties represent, warrant and agree that within ten days after receiving the \$150,000.00 payment identified in paragraph 2A above, Randall will file with the Court a dismissal of the Action, *with prejudice* . . .

10. ENFORCEMENT OF THIS AGREEMENT

A. Time to Bring Action and Venue. . . . In any action brought to enforce this Agreement, the Superior Court for the County of Marin shall retain jurisdiction under section 664.6 to resolve disputes and has the power to award sanctions of \$500.00 against each of the Parties for breach of the Agreement . . .

(Emphasis the court.)

The Agreement also includes mutual releases in paragraph 4. In paragraph 5B, the HOA agreed it would pay for the full cost of repairing or replacing the deck at the Little Villa consistent with certain plans and specifications. In paragraph 6A, the HOA agreed it has an ongoing responsibility to maintain the deck. In paragraph 7, the HOA agreed it would not use Jose Zamora or Zamora Eco Landscapes, Inc. to perform work on the deck. Paragraph 8 provides that work on the deck will consist of structural repairs at the discretion of the HOA subject to the terms of the Agreement, and that the HOA will obtain required permits and use a licensed, insured contractor. Paragraph 9, titled “Other Material Terms”, provides that the parties agree to comply with all laws regarding the

recording of conversations, Randall's maintenance and repair requests will be satisfied within a commercially reasonable time, the parties agree to engage in certain dispute resolution procedures, Randall is not subject to any restrictions not imposed on other HOA members and is required to comply with the provisions of the bylaws and CC&Rs, the parties shall pay each other \$500 for violations of an obligation under the Agreement that an arbitrator finds was committed, and the parties can seek injunctive relief from the Court.

G. The Court's Authority Under Section 664.6

CCP §664.6 (a) provides that "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. . . ."

The statute, CCP §664.6 as cited by the HOA has been updated. The HOA also filed two oppositions to Randall's motion, one on June 11th on its own and one on June 12th jointly with Beales. This is improper, because it allows the HOA to double the page limit requirement through two different law firms.

The parties ask the Court to provide a judicial declaration as to how the Agreement should be interpreted before any dismissal has been entered (Randall Motion, ¶¶1,3 and 4; Defendants Motion, ¶6), and ask the Court to dismiss claims (Randall Motion, ¶2; Defendants Motion, ¶¶3 and 4) even though the Agreement provides for dismissals by the parties.

The Court can interpret a settlement agreement in connection with a motion under Section 664.6. (See *Eagle Fire & Water Restoration, Inc. v. City of Dinuba* (2024) 102 Cal.App.5th 448, 470 ["[W]hen issues relating to the binding nature or terms of the settlement are in dispute, section 664.6 empowers the trial court to resolve these disputed issues and ultimately determine whether the parties reached a binding mutual accord as to the material terms"] [citation and internal quotations omitted]; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 566 ["Section 664.6's express authorization for trial courts to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement"].)

The parties do not contend that the Agreement is unenforceable due to any ambiguity. Rather, the parties seek to "enforce" the Agreement under their respective interpretations of the Agreement. Randall focuses her motion on enforcement of paragraph 10A of the Agreement, which references the Court's retention of jurisdiction under Section 664.6, arguing that jurisdiction can only be retained under that section if there is a dismissal without prejudice.

Defendants focus their motion on enforcement of paragraph 3 of the Agreement, arguing that the parties expressly agreed Randall's dismissal of her First Amended Complaint would be with prejudice.

H. Inconsistency between Paragraphs 3 and 10

Paragraphs 3 and 10 of the Agreement are inconsistent, creating an ambiguity in the Agreement.

Paragraph 3 of the Agreement provides: “The Parties represent, warrant and agree that within ten days after receiving the \$150,000.00 payment identified in paragraph 2A above, Randall will file with the Court a dismissal of the Action, **with prejudice** . . .” [emphasis added]. Defendants focus on this paragraph, arguing that Randall is required to dismiss her First Amended Complaint with prejudice because she received the \$150,000 settlement check.

However, paragraph 3 is inconsistent with paragraph 10, which allows the court to retain jurisdiction to award sanctions in the amount of \$500 against either party for breach of settlement. CCP § 664.6 allows for the retention of jurisdiction only where claims are dismissed **without prejudice**: “If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. . . .”

Section 664.6 creates an exception to the rule that once a voluntary dismissal with or without prejudice has been filed, the trial court is without jurisdiction to act further in the action. (*Wackeen v. Malis* (2002) 97 Cal.App.4th 429, 437; *Mesa RFH Partners, LP v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917; *Gorgi v. Jack in the Box Inc.* (2008) 166 Cal.App.4th 255, 261.) Section 664.6 revises this rule in the limited circumstance of the court’s jurisdiction to enforce a settlement. (See *Wackeen*, 97 Cal.App.4th at p. 439.)

Before the recent amendment to Section 664.6, a court could retain jurisdiction to enforce a settlement as long as the parties asked the court to do so prior to the dismissal of the complaint. (See *Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182.)¹ The amended Section 664.6, effective January 2025, revised the rule as it applies to settlements by identifying specific circumstances under which the court may retain jurisdiction.

The revision uses the term “**without prejudice**” as it pertains to dismissal four times, never once mentioning dismissal with prejudice. The judicial council form referenced in subsection (h) of Section 664.6, CIV-110, provides a box for dismissal without prejudice only with respect to retention of jurisdiction by the court. Under the doctrine of *expressio unius est exclusio alterius*, which means “the expression of certain things in a statute necessarily involves exclusion of other things not expressed”, Section 664.6 is most reasonably interpreted to mean that the court does not retain jurisdiction when the action is dismissed with prejudice. (See *Mutual Life Ins. Co. v. City of Los Angeles* (1990) 50 Cal.3d 402, 410 [“‘Under the familiar rule of construction, *expressio unius est exclusio alterius*, where exceptions to a general rule are specified by statute, other exceptions are not to be implied or presumed’”] [citation omitted].)

The wording of the statute now clearly identifies a specific type of dismissal, without prejudice, allows the court to retain jurisdiction. That language was not in the previous version of the statute. “[W]hen . . . the Legislature undertakes to amend a statute which has been the subject of judicial construction . . . it is presumed that the Legislature was fully cognizant of such construction, and when substantial changes are made in the statutory language it is usually inferred that the lawmakers intended to alter

¹ The parties do not cite, and the Court did not locate, any cases that have addressed the revised language in the most recent version of Section 664.6.

the law in those particulars affected by such changes.’” (*People v. Preston* (1996) 43 Cal.App.4th 450, 460 [citation omitted].)

I. Interpretation of the Agreement

Randall requests that the Court adopt the second interpretation.

Defendants ask the Court to adopt neither, and instead propose a third interpretation: Randall’s First Amended Complaint must be dismissed with prejudice **and** the Court retains jurisdiction to enforce the Agreement under Section 664.6. This proposed interpretation is not supported by the language of the Agreement or the parties’ intent.

First, while Defendants argue that the parties agreed in paragraph 3 that Randall’s dismissal of the First Amended Complaint would be with prejudice, the parties cannot confer jurisdiction on a court following such a dismissal merely by agreeing to it. “Speaking generally, any acts which exceed the defined power of a court in any instance, whether that power be defined by constitutional provision, express statutory declaration, or rules developed by the courts and followed under the doctrine of *stare decisis*, are in excess of jurisdiction” (*Abelleria v. District Court of Appeal, Third Dist.* (1941) 17 Cal.2d 280, 291.) “Jurisdiction cannot be conferred by contract.” (*Marshall v. Phillips* (1940) 39 Cal.App.2d 404, 406.) Following a voluntary dismissal, the court no longer has jurisdiction and such jurisdiction cannot be conferred by consent. (See *Harris v. Billings* (1993) 16 Cal.App.4th 1396, 1405; *Casa de Valley View Owner’s Assn. v. Stevenson* (1985) 167 Cal.App.3d 1182, 1191-1192.)

Second, principles of contract interpretation support Randall’s interpretation, not Defendants’ interpretation. (See *Yahoo Inc. v. National Union Fire Ins. Co.* (2022) 14 Cal.5th 58, 69 [principles of contract interpretation can be applied to ambiguous contract]; *Evleshin v. Meyer* (2025) 115 Cal.App.5th 1021, 1038-1039 [same].) “If a contract is capable of two constructions courts are bound to give such an interpretation as will make it lawful, operative, definite, reasonable, and capable of being carried into effect. In addition, [a]n interpretation which gives effect is preferred to one which makes void.” (*Khavarian Enterprises, Inc. v. Commline, Inc.* (2013) 216 Cal.App.4th 310, 318 [citations and internal quotations omitted]; see *Safeco Ins. Co. of America v. Robert S.* (2001) 26 Cal.4th 758, 765 [“When reasonably practical, contracts are to be interpreted in a manner that makes them reasonable and capable of being carried into effect, and that is consistent with the parties’ intent”]; Civ. Code, § 3541 [“An interpretation which gives effect is preferred to one which makes void”].) Here, Defendants’ proposed interpretation is inconsistent with Section 664.6 and improperly attempts to confer jurisdiction on the court, by contract, that the court does not already have by statute or other proper means. Randall’s interpretation, in contrast, makes the Agreement lawful and capable of being carried into effect.

The clear intent of the Agreement was to settle all parties’ claims against each other and to have the Court retain jurisdiction to enforce the Agreement under Section 664.6. (See Agreement, p. 1 [“Settlement Agreement and Release of All Claims”]; p. 2. [“Each of the Parties represents, warrants and agrees that they wish to resolve all past, present and future claims, whether known and/or

unknown, in connection with the Action and that this Agreement represents a settlement of all disputed claims . . .”]; ¶10A.)²

Defendants’ interpretation requiring dismissal with prejudice is inconsistent with this intent as it would not allow the Court to retain jurisdiction over the parties’ (or at least Randall’s) claims. (See Civ. Code, § 1653 [“Words in a contract which are wholly inconsistent with its nature, or with the main intention of the parties, are to be rejected”]; Civ. Code § 1650 [“Particular clauses of a contract are subordinate to its general intent”].) Under Randall’s interpretation, the parties will still get the benefit of a dismissal of the claims against each other as well as a mutual release of claims; the only difference is that the dismissals will be without prejudice as opposed to with prejudice.

Defendants suggest in opposition filed on June 12 (one of two oppositions) that Randall’s First Amended Complaint should be dismissed with prejudice but the HOA’s Cross-Complaint should be dismissed without prejudice, such that the Court can retain jurisdiction over the Cross-Complaint. (Opp. at pp. 9:26-28, 11:24-27.) This argument belies the clear intent of the parties was to settle the claims in both the First Amended Complaint and the Cross-Complaint and to have the Court retain jurisdiction to enforce the Agreement. Defendants request dismissal without prejudice of both pleadings. (Defendants Motion, ¶¶3, 4.)

For the reasons discussed above, the Court finds the Agreement requires Randall to dismiss her First Amended Complaint, and the HOA to dismiss its Cross-Complaint, *without prejudice*. Once dismissed, the court shall retain jurisdiction to enforce the Agreement under Section 664.6

The Court’s ruling is based on interpretation of the language of the Agreement as discussed above and the language of Section 664.6; it does not create new terms. If the parties wish to have the Court retain jurisdiction under Section 664.6 as they specified in paragraph 10A of the Agreement, the retention of jurisdiction must comply and be consistent with Section 664.6, i.e., the dismissals of the parties’ pleadings must be without prejudice.

J. Duration of the Court’s Jurisdiction

The Court does not rule on the parties’ respective requests as to the duration of the Court’s retained jurisdiction, or the appropriate timing for a dismissal with prejudice in the future. These issues are based on future events and are not ripe for the Court’s determination.

K. Rulings

² The parties are presumed to have been familiar with the language of the most recent version of Section 664.6 when they executed the Agreement. (See *Estate of Taylor* (1970) 6 Cal.App.3d 16, 22; see also *Estate of Eskra* (2022) 78 Cal.App.5th 209, 228 [“courts will not set aside contractual obligations, particularly where they are embodied in written contracts, merely because one of the parties claims to have been ignorant of or misunderstood the provisions of the contract”] [citation omitted].)

1. Randall's motion is granted. The court retains jurisdiction to enforce the Agreement under Section 664.6. (See Randall Motion, ¶1.)
2. Randall's motion is denied to the extent that it seeks dismissal by the Court as the Agreement provides for dismissal by the parties, and the settlement check was not cashed and has expired. Randall's motion is granted to the extent it requests the Court retain jurisdiction if the parties dismiss the First Amended Complaint and Cross-Complaint without prejudice. (See Randall Motion, ¶2.)
3. Randall's motion is denied to the extent that it asks the Court to determine the meaning of "performance in full" under the Agreement or when a dismissal with prejudice may be filed. (See Randall Motion, ¶¶3, 4.)
4. Randall's request for costs is denied.
5. Randall's requests for additional relief at the end of her reply brief are also denied.
6. Defendants' motion is denied to the extent it requests dismissal of Beales as a defendant with prejudice. (See Defendants Motion, ¶1.) The motion is granted as to a dismissal of Beales without prejudice. The Court ordered this dismissal at the hearing on May 5, 2026.
7. Defendants' motion is granted to the extent it requests an order requiring Randall to return the settlement check. (See Defendants Motion, ¶¶2, 5.) The HOA's counsel represents that the time to cash the check expired 90 days after it was issued, or in mid-May. (Declaration of Edward Romero, ¶26.) Randall does not dispute this fact.
8. Defendants' motion is denied to the extent it seeks a dismissal of the First Amended Complaint, and the Cross-Complaint, without prejudice, as the Agreement provides for dismissal by the parties, and the settlement check was not cashed and has expired. (See Defendants Motion, ¶¶3, 4.)
9. Defendants' motion is denied to the extent it seeks a declaration that the parties entered into a valid and enforceable settlement that requires Randall to dismiss, with prejudice, Beales and the HOA from the First Amended Complaint. (See HOA/Beales Motion, ¶6.)

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 06/26/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0002996

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MARITZA RAMIREZ

vs.

DEFENDANT: BUCHANAN
TECHNOLOGIES, INC.

NATURE OF PROCEEDINGS: MOTION – OTHER: PRELIMINARY APPROVAL

RULING

On June 3, 2026, Plaintiff filed a motion seeking preliminarily approval of a wage and hour class action brought by Plaintiff on behalf of all other similarly situated current and former non-exempt employees and independent contractors of Defendant Buchanan Technologies, Inc. (“Defendant”). The Operative Complaint alleges violations of the California Labor Code and Wage Orders including that Defendant (i) failed to pay all overtime wages owed; (ii) failed to provide meal periods, or premium pay for non-compliant meal periods; (iii) failed to authorize and permit rest periods, or premium pay for non-compliant rest periods; (iv) failed to pay minimum wages; (v) failed to pay final wages on time; (vi) failed to issue compliant wage statements; (vii) failed to reimburse business expenses; and (viii) for violations of California Business & Professions Code Section 17200, et seq., based on the aforementioned California Labor Code violations.

The Class is composed of approximately 448 current and former non-exempt employees and independent contractors, whether hourly paid, commission-based or salaried, who worked for Defendant Buchanan in the State of California at any time from November 28, 2019, through January 14, 2026 (the “Class Period”).

Defendant stipulates to settlement as a class action, and does not file an opposition to Plaintiff’s request. The parties did not file a joint request for settlement approval.

The terms are:

1. Defendant will pay a maximum of \$700,000.00, of which, \$411,500 will be distributed on pro rata basis according to the total worked by each putative class member. There are approximately 448 employees who will benefit from the settlement.
2. The settlement period is November 28, 2019, through January 14, 2026.
3. No claims process is required. The putative class members are not required to submit a claim to be issued a settlement payment. The costs for claim administration are estimated at 11,000.